

1APP Level 3 Certified Partner Agreement

Important: This template is business/legal drafting support, not legal advice. 1APP should have an Ontario business lawyer review before use.

This Certified Partner Agreement (the “Agreement”) is made effective as of [DATE] between:

1APP Technologies Inc. (“1APP,” “Company,” “we,” or “us”) and [PARTNER LEGAL NAME] (“Certified Partner,” “Partner,” or “you”).

Together, the “Parties.”

1. Purpose

1APP operates a business automation and customer communication platform for local businesses. The Certified Partner may prospect, qualify, close, and help manage approved 1APP client relationships under this Agreement.

Level 3 is the highest associate level and is reserved for proven sellers who protect the brand, maintain CRM hygiene, avoid overpromising, and help create retained clients.

2. Independent Contractor Status

The Certified Partner is an independent contractor and not an employee, partner in the legal ownership sense, franchisee, agent, officer, or legal representative of 1APP.

Nothing in this Agreement creates an employment relationship, equity ownership, partnership ownership, joint venture, or franchise relationship.

The Certified Partner is responsible for:

- Their own taxes
- Their own expenses, unless approved in writing
- Their own tools, devices, transportation, and communication costs
- Compliance with applicable laws while prospecting, contacting leads, booking demos, and supporting clients

1APP will not provide employee benefits, vacation pay, statutory holiday pay, CPP/EI remittances, workers' compensation coverage, or other employee benefits unless required by law.

3. Certified Partner Requirements

To qualify and remain active as a Level 3 Certified Partner, the Partner must:

- Complete all required 1APP training
- Bring in at least 3 paying clients before certification, unless 1APP waives this in writing
- Maintain CRM hygiene
- Demonstrate clean sales calls with no overpromising
- Follow all brand and compliance rules
- Maintain at least 3 active paying clients unless 1APP approves an exception
- Receive written approval from Tony/Justin or authorized 1APP leadership

1APP may remove Certified Partner status if these requirements are not maintained.

4. Certified Partner Role

The Certified Partner may:

- Prospect and close approved clients
- Present approved 1APP packages
- Help collect onboarding information
- Coordinate handoff to fulfillment
- Stay involved with client success when needed
- Use approved “1APP Certified Partner” branding while in good standing
- Receive priority inbound opportunities if offered by 1APP
- Recruit direct associates only if team-building rights are activated in writing

The Certified Partner may not, without written approval:

- Discount pricing
- Offer custom builds
- Modify contract terms
- Promise same-day launches
- Promise specific revenue, lead volume, rankings, savings, or results
- Sell outside approved niches or offers
- Sign contracts on behalf of 1APP
- Collect client payments personally
- Represent themselves as an owner, officer, employee, equity partner, or legal representative of 1APP
- Create unapproved marketing materials using 1APP branding

5. Approved Plan Pricing Reference

Current standard plans:

Plan	Setup Fee	Monthly Fee
Standard	\$500	\$299/month
Growth	\$1,000	\$499/month
Revenue Engine	\$1,500+	\$799+/month

1APP may update pricing, packaging, or offers at any time. The Certified Partner must use current approved pricing supplied by 1APP.

6. Certified Partner Compensation

The Certified Partner earns commission only on collected revenue from clients they properly source, qualify, close, or help close under this Agreement.

Compensation Type	Rate
Setup fee commission	20% of setup fee collected
Monthly recurring commission	20% of MRR collected
Recurring cap	None — lifetime while client remains active and Partner remains eligible

Lifetime recurring means the Partner continues earning recurring commission while:

1. The client remains active and paying;
2. The Partner remains in good standing;
3. The commission is not reversed due to refund, chargeback, cancellation, misconduct, or breach; and
4. This Agreement or a written amendment does not state otherwise.

No commission is paid on:

- Taxes
- Payment processing fees
- Refunded amounts
- Chargebacks
- Free trials

- Free months
- Discounts unless approved by 1APP
- Clients already active in 1APP's pipeline
- Deals closed using unauthorized promises or claims

7. Example Compensation

Example: Client signs the Growth plan at \$1,000 setup + \$499/month.

- Setup commission: \$200
- Monthly commission: \$99.80/month
- Recurring continues while the client remains active and the Partner remains eligible
- Year 1 potential commission: \$1,397.60
- Year 2 potential commission: \$1,197.60
- Year 3 potential commission: \$1,197.60

This is an example only and not a guaranteed income claim.

8. Level 3 Benefits

While in good standing, the Certified Partner may be eligible for:

Benefit	Details
Lifetime recurring	No 12-month cap while eligible
Priority inbound leads	Access to inbound demo requests if 1APP chooses to distribute them
Milestone bonus	\$250 bonus for every 5 active paying clients held simultaneously, if verified by 1APP
Co-branding	Approved "1APP Certified Partner" badge for LinkedIn, business card, and website
Direct support	Access to Tony/Justin or approved leadership for deal strategy and close support

Benefits may be paused or removed if the Partner is not in good standing.

9. Optional Team Override Schedule

Team-building rights are not automatic. They must be activated in writing by 1APP.

If activated, the Certified Partner may recruit direct associates and earn a single-level override on their direct recruits only.

Override Type	Rate
Setup fee override	5% of setup fee collected
Monthly recurring override	5% of MRR collected
Depth	Direct recruits only — one level deep

No override is paid on:

- The Partner's own sales
- Recruits not directly attributed to the Partner
- Recruits who are removed from the program
- Deals involving misconduct or unauthorized claims
- Taxes, fees, refunds, chargebacks, free trials, or free months

Team override rights require the Partner to:

- Ensure recruits complete required training before selling
- Coach recruits on approved scripts and brand rules
- Report conduct issues promptly
- Avoid exaggerated income claims
- Avoid creating a multi-level or downline structure beyond direct recruits

1APP may suspend or remove override rights at any time for brand risk, compliance concerns, misconduct, or failure to supervise recruited associates.

10. Income Claim Rules

The Certified Partner must never promise associates or recruits specific income.

Approved wording:

Commissions depend entirely on how many qualified clients you close and retain. Results vary based on effort, market, and consistency.

Unapproved income claims, lifestyle claims, exaggerated earnings claims, or misleading recruiting claims are grounds for immediate termination and loss of override rights.

11. Qualified Lead Rules

A lead is commissionable only if it is qualified, properly submitted, and attributable to the Partner.

A qualified lead must include:

- Business owner or real decision-maker
- Business name
- Contact name
- Phone and/or email
- Serviceable market
- Real business pain related to missed calls, poor follow-up, manual booking/admin, reviews, lead leakage, or customer communication
- Agreement to a 1APP audit/demo or clear request for pricing/info

Not qualified:

- Random names with no conversation
 - Duplicate leads already active in 1APP CRM
 - Businesses outside 1APP's current target market
 - Leads submitted after another associate/company source already created the opportunity
 - Prospects with no realistic ability or intent to pay
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12. Lead Ownership Window

A properly submitted qualified lead is protected for **90 days** from CRM submission.

If there is no meaningful activity for **30 days**, 1APP may reassign or take over the lead.

If two associates/partners claim the same lead:

1. The first properly logged CRM record wins.
 2. If unclear, 1APP decides in good faith.
 3. No associate or partner may argue with the client or damage the 1APP brand over lead ownership.
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13. Payment Timing

Commissions are paid only after the client payment is collected and cleared.

Expected payout timing:

- Setup commission: within 15 business days after setup fee clears and onboarding begins
- Monthly commission: paid monthly after client payment clears
- Override commission: paid monthly after the recruited associate's client payment clears and attribution is verified
- Milestone bonus: paid after 1APP verifies the active client count

1APP may require the Partner to submit an invoice before payment.

1APP will provide reasonable commission reporting so the Partner can understand what was paid and why.

14. Refunds, Chargebacks, Cancellations, and Clawbacks

If a client refunds, cancels, disputes, or charges back a payment, 1APP may reverse the related commission or deduct it from future payouts.

If commission was earned through misleading claims, unauthorized promises, unapproved pricing, brand misuse, privacy violations, or misconduct, 1APP may withhold or reverse commission tied to that deal.

15. CRM and Activity Requirements

The Certified Partner must track sales activity using the approved 1APP CRM or lead submission process.

Required tracking may include:

- Prospect name
- Business name
- Phone/email
- Industry
- Source
- Pain/problem
- Conversation notes
- Follow-up date
- Demo/audit status
- Deal stage
- Onboarding notes
- Client success notes when applicable

Failure to properly track activity may result in loss of commission attribution.

16. Brand and Conduct Rules

The Certified Partner must:

- Use approved scripts and materials
- Be honest about 1APP capabilities
- Never guarantee results
- Never use fake scarcity or fake urgency
- Never exaggerate earnings, client results, or product capabilities
- Never collect client payment personally unless explicitly authorized
- Protect confidential client and company information
- Follow applicable privacy and anti-spam laws, including CASL where applicable
- Act professionally at all times

Violation may result in immediate termination, loss of Certified Partner status, and possible forfeiture of unpaid commission tied to misconduct.

17. Privacy, Anti-Spam, and Data Handling

The Certified Partner must handle prospect and client data responsibly and only for approved 1APP business purposes.

The Certified Partner must not:

- Export 1APP CRM data for personal use
- Add prospects to mass messaging without proper consent
- Misuse email, SMS, or phone outreach
- Share client/prospect information outside 1APP
- Store sensitive data in unapproved tools

The Partner agrees to comply with applicable Canadian privacy and anti-spam obligations, including PIPEDA and CASL where applicable.

18. Confidentiality

The Certified Partner may receive confidential information including pricing, scripts, systems, workflows, CRM records, client details, training, strategy, proposals, documents, and business plans.

The Certified Partner must keep this information confidential during and after this Agreement.

Confidential information may not be copied, shared, sold, published, or used outside approved 1APP activity.

19. Client Ownership and Non-Circumvention

All clients, prospects, accounts, workflows, automations, documents, CRM records, and business relationships created through 1APP activity belong to 1APP.

For **12 months** after this Agreement ends, the Certified Partner must not bypass 1APP to sell competing or similar services to any 1APP client or active prospect they learned about through 1APP.

This clause is intended as a reasonable non-solicitation and non-circumvention protection, not a general non-compete.

20. Intellectual Property

All 1APP materials, scripts, logos, sales assets, onboarding systems, snapshots, workflows, templates, automations, documents, and training materials remain the property of 1APP.

The Certified Partner receives only a limited, revocable permission to use approved materials while in good standing.

21. No Guaranteed Income or Leads

1APP does not guarantee any income, commission, leads, sales volume, territory, inbound opportunities, or business outcome.

Any examples in this Agreement are illustrative only.

22. Termination

Either Party may terminate this Agreement with **7 days' written notice**.

1APP may terminate immediately for cause, including:

- Misrepresentation
- Unauthorized pricing or promises
- Brand misuse
- Confidentiality breach
- Privacy or anti-spam violations
- Failure to use CRM properly
- Client payment handling without authorization
- Harassment, dishonesty, or conduct damaging to 1APP
- Improper recruiting or exaggerated income claims

- Failure to maintain Certified Partner requirements

After termination, the Certified Partner remains eligible for properly earned commissions from approved, closed, paid clients attributable before termination, subject to refund, chargeback, clawback, misconduct, and good-standing rules.

1APP may stop future lifetime recurring commission if termination is for cause, misconduct, brand damage, breach of confidentiality, privacy violations, or non-circumvention breach.

No commission is owed on new activity after termination unless 1APP agrees in writing.

23. Dispute Resolution

The Parties agree to first attempt to resolve disputes in good faith through written discussion.

If unresolved, disputes will be handled under the laws of Ontario, Canada, and the courts of Ontario will have jurisdiction unless the Parties agree to mediation or arbitration in writing.

24. Entire Agreement

This Agreement, together with any signed compensation schedule or written amendment, is the entire agreement between the Parties for Level 3 Certified Partner activity.

Changes must be in writing and signed or confirmed by both Parties.

25. Signatures

1APP Technologies Inc.

Name: _____ Title: _____ Signature: _____
Date: _____

Certified Partner

Legal Name: _____ Signature: _____ Date: _____
Email: _____ Phone: _____
